

CHAPTER 42.

An Act for taking the Census for Ireland in the year
nineteen hundred and twenty-one.

[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. A census for Ireland shall be taken in the year nineteen hundred and twenty-one in the manner hereinafter directed, and the census day shall be Sunday the twenty-fourth day of April in that year. Census to be taken in 1921.

2.—(1) The Lord Lieutenant may appoint such officers of local authorities or such other persons as he thinks proper to act as and be enumerators for the purpose of this Act, or to superintend or assist in the enumeration. Enumerators and their duties.

(2) Every enumerator shall, upon the Monday following the census day, and such one or more next consecutive days as the Lord Lieutenant may fix, visit every house within the district assigned to him and take an account in writing, according to such instructions as may be given to him by the Chief or Under Secretary to the Lord Lieutenant, of the number of persons who abode therein on the night of the census day, and of the sex, age, religious profession, birthplace, parentage, condition as to marriage, relation to head of family, and occupation of all such persons, and (in the case of persons married or having been married) the number of children and step children living.

(3) Every enumerator shall take an account of the number of inhabited houses and of uninhabited houses and of houses then building within his district and of the number of rooms occupied by any occupier; and shall also furnish such particulars as may be directed as to the counties, boroughs, towns, districts, and other areas for electoral or administrative purposes in which the houses are situate.

(4) The enumerators shall also take an account of all such further particulars as they may be directed to inquire into by such instructions as are authorised to be issued under this Act.

(5) Every enumerator may ask all such questions of all persons within his district respecting themselves or the persons constituting their respective families, and respecting such further particulars, as may be necessary for the purpose of taking the said accounts.

3. The governor, master, or chief resident officer of every prison, workhouse, barrack, hospital, or lunatic asylum, and of every public or charitable institution which may be determined upon by the Lord Lieutenant, shall act as and be the enumerator of the inmates thereof, and shall conform to such instructions Enumeration in public and charitable institutions.

as may be sent to him by the authority of the Lord Lieutenant for obtaining the returns required by this Act, so far as may be practicable, with respect to such inmates, but the initial letters only of the Christian names and surnames of such inmates shall be stated in any such return.

Provision as
to houseless
persons.

4. The Chief Secretary shall obtain returns of the particulars required by this Act with respect to all houseless persons, and all persons who during the night of the census day were travelling or on shipboard, or for any other reason were not abiding on that night in any house of which account is to be taken by the enumerators, and shall include such returns in the abstract to be laid before Parliament.

Forms,
instruc-
tions and
expenses.

5.—(1) The Chief or Under Secretary to the Lord Lieutenant shall prepare and issue such forms and instructions as he may think necessary for the taking of the census, and the census shall be taken by means of and in the manner prescribed by those forms and instructions, and no question shall be put for the purpose of obtaining information other than the information required by those forms and instructions.

(2) The expenses incurred with the approval of the Treasury for the purposes of the census shall be paid out of moneys provided by Parliament.

Certificates
of accounts
and abstract
of returns.

6.—(1) Every enumerator shall sign and certify the account taken by him, and make a statutory declaration to the effect that the said account has been truly and faithfully taken by him, and that, to the best of his knowledge, the same is correct, so far as may be known, and shall deliver the same to such person as may be appointed by the Lord Lieutenant to receive the same from him.

(2) The accounts shall be examined, corrected, certified, and transmitted in such manner and within such time as the Lord Lieutenant may direct, and the same shall be digested and reduced into order, under the direction of the Chief or Under-Secretary to the Lord Lieutenant, by the Registrar-General of Births, Deaths and Marriages in Ireland, and by such other persons as the Lord Lieutenant may appoint for that purpose.

(3) An abstract of the accounts taken under this Act shall be laid before both Houses of Parliament within twelve months after the census day, if Parliament be then sitting, or, if Parliament be not then sitting, within the first fourteen days of the session then next ensuing.

Penalties.

7.—(1) If any enumerator makes wilful default in the performance of any of his duties under this Act, he shall for each offence be liable on conviction under the Summary Jurisdiction (Ireland) Acts to a fine not exceeding five pounds.

(2) If any person refuses to answer or wilfully gives a false answer to any question necessary for obtaining the information required to be obtained under this Act, he shall for each offence be liable on conviction under the Summary Jurisdiction (Ireland)

Acts to a fine not exceeding five pounds: Provided that no person shall be subject to any such penalty for refusing to state his religious profession.

(3) If any person employed in taking the census communicates without lawful authority any information acquired in the course of his employment, he shall be guilty of a misdemeanour and shall on conviction be liable to imprisonment with or without hard labour for a term not exceeding two years, or to a fine or to both such imprisonment and fine.

8. A certificate from the General Register Office, purporting to be signed by the Registrar-General of Births, Deaths and Marriages in Ireland, shall be admitted in any court of law as evidence of the population, at the census taken under this Act, of any county, borough, town, district or other area to which it refers, and the said Registrar-General shall be bound, if possible, to deliver such certificate to any person on payment of a fee of one shilling. Certificate of population.

9. This Act may be cited as the Census (Ireland) Act, 1920. Short title.

CHAPTER 43.

An Act to amend the Law relating to Firearms and other Weapons and Ammunition, and to amend the Unlawful Drilling Act, 1819. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) A person shall not purchase, have in his possession, use, or carry any firearm or ammunition unless he holds a certificate (in this Act called a firearm certificate) granted under this section, and in force at the time. Restriction on purchase, possession, and use of firearms.

(2) A firearm certificate shall be granted by the chief officer of police of the district in which the applicant for the certificate resides, if he is satisfied that the applicant is a person who has a good reason for requiring such a certificate and can be permitted to have in his possession, use, and carry a firearm or ammunition without danger to the public safety or to the peace, and on payment of the prescribed fee :

Provided that—

(a) a firearm certificate shall not be granted to a person whom the chief officer of police has reason to believe to be a person who by this Act is prohibited from possessing, using, or carrying a firearm, or to be a person of intemperate habits or unsound mind, or to be for any reason unfitted to be entrusted with firearms; and